Our Park. Our Vote.

A MINNESOTA NONPROFIT ORGANIZATION

ABOUT THIS PETITION

ourparkourvote.org · *Questions? 202.255.4590*

PLEASE SIGN BOTH PETITION SHEETS

There are two separate petitions — one for each parcel. Both need your signature to count.

You must be a **registered Duluth voter** to sign. Unregistered signers cannot be counted.

YOUR SIGNATURE CAN FORCE A PUBLIC VOTE ON THE FUTURE OF LESTER PARK.

The City of Duluth is moving to transfer 267 acres of public parkland to private developers — without a public vote. These petitions can legally require one under the Duluth City Charter.

267
TOTAL ACRES OF PUBLIC LAND
Former Lester Park Golf Course

0
PUBLIC VOTES HELD
On any aspect of this transfer

3,664
SIGNATURES PER PETITION
Forces a public vote within 25–40 days

2
SEPARATE PETITIONS
One per parcel — both need signatures

THE ISSUE

Why This Matters

— Developer Tom Sunnarborg has proposed a Vail/Breckenridge-style destination resort at Lester — hotel, restaurants, ~450 housing units, and a golf course. *(DNT, Nov. 21, 2025)* This is not an affordable housing project.

— The city's own 2018 Development Suitability Analysis rated Lester Park the lowest possible score for development — citing bedrock, slope, and lack of utilities.

— A 2023 city-commissioned study found ~2,400 developable units near downtown sitting unused. There are better places to build housing.

— A *2025 JAMA study* found living within 1–2 miles of a golf course means up to 3× higher odds of Parkinson's disease from pesticide exposure. The Lester River runs alongside the site and drains to Lake Superior.

THE INITIATIVE

How This Petition Works

— The 230-acre upper parcel is still zoned parkland — our petition requires any rezoning go to a public vote first.

— The 37.5-acre lower parcel was already rezoned mixed-use — our petition requires it to be rezoned back to parkland.

— With 3,664 valid signatures on each petition (20% of registered Duluth voters), the City Council must adopt the ordinance or call a special election within 25–40 days.

— A voter-passed ordinance cannot be overturned by the Council — it would require going back to the ballot.

— Common question: "Is this a legally binding petition?" — Yes. Charter citizen initiatives are binding under Minnesota law. This is not a survey.

WHAT YOU'RE SIGNING

How Signing Works

— You must be a registered Duluth voter. Sign with your full legal name, current residence address, and year of birth.

— There are two separate petition sheets — one for each parcel. Both need your signature.

— This is a legally binding citizen initiative under the Duluth City Charter — not a survey or a letter.

— Your signature is public record once submitted to the City Clerk, as required by Minnesota law.

▶ AFTER YOU SIGN

Each sheet has an affidavit at the bottom certifying the signatures were witnessed in person. **You can be your own certifier** — if you're signing for yourself, sign the affidavit on both sheets as well. All four signatures (two petition lines, two affidavits) are required for your signatures to count.

▶ RETURN INSTRUCTIONS

Mail completed sheets to **Our Park, Our Vote, 1346 W. Arrowhead Rd. #324, Duluth, MN 55811** — or email **info@ourparkourvote.org** or call **(202) 255-4590** to make alternative arrangements.

▶ **MORE DETAILS ON THE REVERSE SIDE** Developer background, the land use study, and the environmental case against golf course development.

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ABOUT THIS PETITION

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1 THE DEVELOPER'S TRACK RECORD

- The developer, Tom Sunnarborg, is a luxury golf resort builder — one of his previous projects, Streamsong Resort, now charges $425/round in green fees. *(Duluth News Tribune, June 11, 2019; Nov. 21, 2025)*
- Sunnarborg's longtime business partner is Rich Mack, former top executive at The Mosaic Company — one of the world's largest phosphate miners, whose radioactive mining waste is stored in mountainous open-air piles that have collapsed and contaminated waterways. *(forestdunesgolf.com)* In 2015, the EPA called its nearly $2 billion settlement with Mosaic the most significant enforcement action in mining history. *(U.S. EPA, Oct. 2, 2015)*
- Together, Mack and Sunnarborg built Streamsong Resort on former mine land — sold for $160M; peak green fees now $425/round — and co-own Forest Dunes in Michigan (peak rounds: $245), acquired January 2021. *(forestdunesgolf.com; Mosaic press release, Jan. 2023; Golftime, Apr. 2021)* Sunnarborg first tried to buy Lester Park in 2019. *(DNT, June 11, 2019)* Mack has not yet been publicly linked to the Lester proposal.
- Working group chair Tim Meyer endorsed the Sunnarborg plan in a Dec. 3, 2025 op-ed in the Duluth News Tribune, while suggesting a public vote "may" be a good idea.

2 WRONG PLACE FOR HOUSING

- The city's own 2018 Development Suitability Analysis scored every Duluth parcel — Lester Park received the lowest possible rating, citing slope, rare natural features, depth to bedrock, and lack of utilities. *(City of Duluth, 2018)*
- A 2023 study found ~2,400 developable housing units near downtown Duluth — sitting unused. *(Zimmerman-Volk Associates, City of Duluth, Sept. 2023)*
- Incline Village — DEDA financed it with $75M in public TIF money, the developer failed, the TIF was canceled, and the property sits vacant and blighted. This is where new housing belongs.
- Greenfield development costs ~3× more than infill per unit. *(Hamilton & Kellett, 2017)* Lester Park sits on bedrock, which costs ~8× more to excavate than common soil. *(MnDOT, 2025)*
- No affordable housing guarantees were written into the conditional transfer ordinance.
- MDA warns golf course conversion may expose residents to mercury, arsenic, and chromium. A 2025 *JAMA* study found living within 1–2 miles of a course means up to 3× higher odds of Parkinson's disease. *(MDA, 2015; JAMA, 2025)*

3 THE LAND USE STUDY IS NOT A FAIR PROCESS

- Mayor Reinert's office stated that golf is a key element of any future master plan. *(Mayor Reinert press release, April 28, 2025)*
- The resolution guiding the study states a policy preference for "golf-related recreation." *(Resolution 25-0845R)* A resort-style 18-hole course requires 170–200 acres — roughly two-thirds of the entire 267.5-acre site, leaving ~70–100 acres for everything else. For context: Hartley Park is 660 acres.
- Conservation is unenforceable: the Council may — but is not required to — act on any study recommendation.
- Study findings are confidential by contract. The $197,546 agreement with Bolton & Menk bars release without city authorization. *(Agreement for Professional Services, section III.3.b)*

4 GOLF IS A DECLINING INDUSTRY

- More U.S. courses have closed than opened every year since 2006. Over 2,000 courses — 13%+ — have closed since the 2004 peak. *(National Golf Foundation)*
- There are already 14 courses within 30 miles of Duluth.* The region is not underserved.
- There are more golf courses in America than McDonald's restaurants — ~16,000 vs. 13,000. *(New York Times, Feb. 15, 2024)*

5 GOLF COURSES ARE ENVIRONMENTALLY HARMFUL

- Golf courses apply pesticides at 4–7× the rate of conventional agriculture per acre, contaminating groundwater and streams. *(NY AG's Office "Toxic Fairways," 1995)*
- The Lester River runs alongside the site — runoff flows directly to Lake Superior.
- A typical course uses approximately 312,000 gallons of water per day. *(Audubon International)*
- Rewilded courses show real results: at San Geronimo, CA, removing a golf course dam brought record coho salmon returns for the first time in decades. *(New York Times, Feb. 15, 2024)*

* Courses within 30 miles: Enger Park · Grand View Golf Links · Northland CC (pvt) · Ridgeview CC (pvt) · Pike Lake Golf & Beach Club — all in Duluth; plus Proctor Golf Club (6 mi) · Nemadji Golf Course, Superior WI (8 mi) · Pattison Park Golf Course, Superior WI (17 mi) · Cloquet Country Club (18 mi) · Poplar Golf Course, Poplar WI (19 mi) · Black Bear Golf Course, Carlton MN (19 mi) · Pine Hill Golf Club, Carlton MN (20 mi) · Big Lake Golf Club, Cloquet MN (24 mi) · Lakeview National Golf Course, Two Harbors MN (27 mi).

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✦ SIGN BOTH PETITIONS!

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CITIZEN INITIATIVE PETITION — LESTER PARKLAND PROTECTION (PARCEL 1 OF 2)

City of Duluth, Minnesota • Proposed Ordinance Under Section 51 of the Duluth City Charter

SUMMARY: This ordinance would require voter approval before the approximately **230 acres** of the former Lester Park Golf Course can be rezoned from parkland to allow private development. The full text of the proposed ordinance is printed on the reverse side.

1
WHO CAN SIGN
You must be a **registered Duluth voter.** Unregistered signers cannot be counted.

2
HOW TO SIGN
Print your full legal name · Year born · Sign in ink · Full residence address (no P.O. boxes) · Today's date.

3
SIGN BOTH SHEETS
There are **2 separate petitions.** Both need your signature — they cover different parcels.

4
RETURN COMPLETED SHEETS
Mail to **Our Park Our Vote, 1346 W. Arrowhead Rd. #324, Duluth MN 55811** or email **info@ourparkourvote.org** to arrange drop-off.

#	Printed Full Name	Year Born	Signature (sign in ink)	Residence Address (street, Duluth, MN — no P.O. boxes)	Date Signed
1					
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CIRCULATOR'S AFFIDAVIT

NOTE: A COMPLETED SHEET REQUIRES ONLY ONE SIGNATURE ABOVE AND ONE CIRCULATOR'S AFFIDAVIT BELOW.

I, _____, certify that I personally circulated the foregoing petition paper, that all the signatures appended thereto were made in my presence, and that I believe them to be genuine.

Signature: _____ **Date:** _____ **Address:** _____

PROPOSED ORDINANCE — FULL TEXT (PARCEL 1 OF 2)

The city of Duluth does ordain:

SECTION 1. PURPOSE AND FINDINGS.
The People of Duluth find that the former Lester Park Golf Course, comprising approximately 230 acres of public parkland, is an irreplaceable natural asset held in trust for the benefit of current and future residents of Duluth. The People further find that the rezoning of public parkland from park or open space classification to a classification permitting private development is functionally equivalent to the disposition of parkland, as such rezoning eliminates the legal protections that preserve the land for public use. The rezoning of parkland to permit private development is a legislative act properly subject to voter approval under the City's home rule charter. The People further find that the disposition of public parkland within the City of Duluth is a matter of local municipal concern, affecting the residents and taxpayers of Duluth who bear the consequences of the loss of public open space and who are entitled to a direct voice in decisions of this magnitude. This ordinance ensures that the Property may not be rezoned for private development without the approval of the voters of Duluth. Nothing in this ordinance shall be construed to exempt the City from compliance with any applicable state law.

SECTION 2. DEFINITIONS.
As used in this ordinance: (a) "Property" means all land constituting the former Lester Park Golf Course authorized for conditional conveyance to the Duluth Economic Development Authority by Ordinance 25-032-O, comprising approximately 230 acres, together with any land subsequently added to or consolidated with said parcel by city action. The Property does not include the approximately 37.5-acre parcel commonly known as the Lake 9 parcel previously conveyed to DEDA. (b) "Covered Rezoning" means any rezoning, land use amendment, comprehensive plan amendment, or other regulatory action that would change the classification of the Property, or any portion thereof, from a park, open space, or conservation designation to a classification that authorizes or facilitates private residential, commercial, industrial, hospitality, or mixed-use development.

SECTION 3. VOTER APPROVAL REQUIRED.
(a) No Covered Rezoning of the Property or any portion thereof shall be effective unless approved by a majority of the voters voting on the question at a regular or special City election. (b) The City Council shall not adopt any ordinance, resolution, or other legislative action authorizing or effectuating a Covered Rezoning unless voter approval has first been obtained as required by this section. (c) The ballot question presented to the voters shall describe the proposed Covered Rezoning in plain language, including the approximate acreage affected and the general nature of the proposed use.

SECTION 4. APPLICATION TO PENDING AND FUTURE ACTIONS.
This ordinance applies to all Covered Rezonings occurring on or after its effective date, regardless of whether preliminary authorizations, conditional conveyances, land use studies, or other preparatory actions were undertaken prior to the effective date.

SECTION 5. EXCEPTIONS.
The following actions shall not constitute a Covered Rezoning and shall not require voter approval: (a) The formal designation, rezoning, or reclassification of the Property to a park, open space, conservation, or public recreation zoning classification that strengthens its public parkland character. (b) Any variance, conditional use permit, or other land use approval that does not change the underlying zoning classification of the Property and that is consistent with park, open space, conservation, or public recreation use.

SECTION 6. ENFORCEMENT.
Any resident or taxpayer of the City of Duluth shall have standing to bring an action in the District Court of St. Louis County to enjoin any Covered Rezoning that has not received voter approval as required by this ordinance. The court shall award reasonable attorney's fees and costs to a prevailing plaintiff.

SECTION 7. SEVERABILITY.
If any provision of this ordinance or its application to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications that can be given effect without the invalid provision or application.

SECTION 8. EFFECTIVE DATE.
This ordinance shall take effect upon its adoption by the voters at a regular or special election, as provided by Section 16 of the Duluth City Charter.

✦ SIGN BOTH PETITIONS!

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CITIZEN INITIATIVE PETITION — LESTER PARKLAND PROTECTION (PARCEL 2 OF 2)

City of Duluth, Minnesota • Proposed Ordinance Under Section 51 of the Duluth City Charter

SUMMARY: This ordinance would direct the City of Duluth to rezone the approximately **37.5 acres** parcel commonly known as the Lake 9 parcel of the former Lester Park Golf Course to a park, open space, or conservation zoning classification, and would require any future rezoning of the parcel to allow private development to first be approved by a majority of Duluth voters. The full text of the proposed ordinance is printed on the reverse side.

1
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I, _____, certify that I personally circulated the foregoing petition paper, that all the signatures appended thereto were made in my presence, and that I believe them to be genuine.

Signature: _____ **Date:** _____ **Address:** _____

PROPOSED ORDINANCE — FULL TEXT (PARCEL 2 OF 2)

The city of Duluth does ordain:

SECTION 1. PURPOSE AND FINDINGS.
The People of Duluth find that the approximately 37.5-acre parcel commonly known as the Lake 9 parcel of the former Lester Park Golf Course was part of a public park system held in trust for the benefit of current and future residents of Duluth. The People further find that the conveyance of the Lake 9 parcel to the Duluth Economic Development Authority does not extinguish the public interest in its protection from private development. The City of Duluth retains full regulatory authority over the use of all land within its boundaries, including land held by its subordinate bodies, through the exercise of its zoning and land use powers. The People further find that rezoning the Lake 9 parcel to the Park and Open Space District (P-1) under Section 50-17.4 of the Duluth Unified Development Chapter is a lawful and appropriate exercise of the City's police power, is consistent with the public trust character of former parkland, and ensures that the parcel's natural and recreational values are preserved under the City's land use regulations regardless of title. Nothing in this ordinance shall be construed to affect the title to the Lake 9 parcel, to require the expenditure of public funds, or to exempt the City from compliance with any applicable state law.

SECTION 2. DEFINITIONS.
As used in this ordinance: (a) "Lake 9 Parcel" means the approximately 37.5-acre parcel of the former Lester Park Golf Course commonly known as the Lake 9 parcel, previously conveyed to the Duluth Economic Development Authority, located within the City of Duluth, St. Louis County, Minnesota. (b) "Protective Zoning Classification" means the Park and Open Space District (P-1) under Section 50-17.4 of the Duluth Unified Development Chapter, or any successor district that protects land for recreational, scenic, and natural resource uses and prohibits private residential, commercial, industrial, hospitality, or mixed-use development.

SECTION 3. REZONING DIRECTED.
(a) The City of Duluth shall, within 180 days of the effective date of this ordinance, initiate and complete all actions necessary to rezone the Lake 9 Parcel to the Park and Open Space District (P-1) under Section 50-17.4 of the Duluth Unified Development Chapter. (b) The rezoning shall be accomplished through the City's standard zoning amendment process. (c) If the Park and Open Space District (P-1) is amended or replaced prior to compliance, the City shall rezone to the closest equivalent successor district.

SECTION 4. PROHIBITION ON DEVELOPMENT ZONING.
(a) Following the effective date of this ordinance, the City shall not rezone the Lake 9 Parcel to any classification that authorizes or facilitates private residential, commercial, industrial, hospitality, or mixed-use development, unless approved by a majority of the voters voting on the question at a City election. (b) The prohibition applies to all rezonings occurring on or after the effective date of this ordinance.

SECTION 5. ENFORCEMENT.
Any resident or taxpayer of the City of Duluth shall have standing to bring an action in the District Court of St. Louis County to compel performance or to enjoin any rezoning in violation of Section 4. The court shall award reasonable attorney's fees and costs to a prevailing plaintiff.

SECTION 6.